

MOTION TO WAIVE FEES AND COSTS

STATE OF MICHIGAN
IN THE SUPREME COURT

MSC Case No. ____ (To Be Assigned)

Lower Court Case Nos.:

14th Judicial Circuit Court: 2024-001507-DC; 2023-5907-PP

Court of Appeals: 366810 (Pending)

ANDREW J. PIGORS,
Petitioner (Pro Se),

v.

THE 14TH JUDICIAL CIRCUIT COURT,
FAMILY DIVISION, MUSKEGON COUNTY
(HON. JENNY L. McNEILL, Presiding),
Respondent,

and

EMILY A. WATSON,
Real Party in Interest.

MOTION TO WAIVE FEES AND COSTS

(MCR 2.002; Const 1963, Art 1, Sec. 13)

NOW COMES Petitioner Andrew J. Pigors, appearing pro se, and respectfully moves this Honorable Court for an order waiving all fees and costs associated with proceedings before this Court, and in support thereof states as follows:

I. IDENTITY OF MOVANT

1. Andrew J. Pigors ("Movant") is the Petitioner in the above-captioned Petition for Superintending Control, proceeding pro se without the assistance of legal counsel.
2. Movant resides at 1977 Whitehall Road, Lot 17, North Muskegon, Michigan 49445, in Muskegon County.
3. Movant files this Motion contemporaneously with SCAO Form MC 20 (Affidavit and Order -- Suspension of Fees/Costs), which is incorporated herein by reference.

*[ANDREW_REQUIRED: Download MC 20 from
<https://courts.michigan.gov/siteassets/forms-records/scao-approved/mc20.pdf> --
complete and sign all sections of the form, including the financial affidavit portion.
Attach the completed MC 20 to this motion before filing.]*

II. CASE IDENTIFICATION

4. This matter arises as an original action in this Court seeking superintending control over the 14th Judicial Circuit Court, Family Division, Muskegon County, in connection with custody proceedings in Case No. 2024-001507-DC and related PPO proceedings in Case No. 2023-5907-PP.
5. The underlying dispute involves fundamental parental rights, including custody, parenting time, and the parent-child relationship. Movant has been separated from his son, L.D.W. (DOB November 9, 2022), for approximately 229 consecutive days since July 29, 2025, following the trial court's ex parte revocation of a 50/50 custody arrangement that had functioned successfully for 438 days. In total, Movant has been denied contact with his child for 269 days across two separate withholding periods.
6. Movant has a related appeal pending before the Michigan Court of Appeals, Case No. 366810.

III. FINANCIAL CIRCUMSTANCES

7. Movant's current monthly gross income is: [ANDREW_REQUIRED: Income amount].

8. Movant's current monthly net income is: [ANDREW_REQUIRED: Net income amount].
9. Movant's total liquid assets (bank accounts, cash on hand) are: [ANDREW_REQUIRED: Asset amount].
10. Movant's current monthly expenses (rent, utilities, food, transportation, medical) are: [ANDREW_REQUIRED: Expenses amount].
11. Movant's total outstanding debts and obligations are: [ANDREW_REQUIRED: Debt amount].
12. Movant receives the following public assistance, if any: [ANDREW_REQUIRED: List any -- food stamps, Medicaid, SSI, etc. If none, write "None." If you receive any means-tested assistance, it creates a presumption of eligibility under MCR 2.002(B)].
13. The number of persons dependent upon Movant for support: [ANDREW_REQUIRED: Number of dependents].
14. Movant is unable to pay the filing fee of \$375.00 and other associated costs without depriving himself of the necessities of life, including food, shelter, clothing, and medical care.

IV. CAUSATION -- COURT-IMPOSED POVERTY

15. Movant's financial hardship is not merely coincidental -- it is a direct result of the very judicial conduct he seeks to challenge before this Court:
 - a. Movant was incarcerated for 59 days on civil contempt, with purge conditions set beyond his ability to pay and without an ability-to-pay hearing;
 - b. As a direct result of that incarceration, Movant lost two (2) jobs, including employment with the United States Postal Service;
 - c. As a direct result of that incarceration and job loss, Movant lost two (2) or more homes;
 - d. Movant's total documented economic damages from the lower court's actions are estimated to

exceed \$82,250;

e. Movant has been ordered to pay child support of \$1,056.60 per month, imposed without an adequate hearing on his ability to pay.

16. In essence, the lower court's actions created Movant's indigency, and that indigency now threatens to bar Movant from the only court with the constitutional authority to address the lower court's systemic failure. This creates a closed loop of injustice that only this Court can break.

V. LEGAL BASIS FOR FEE WAIVER

17. MCR 2.002 provides that a court shall waive fees and costs for a party who, by reason of indigency, is unable to pay them. The rule applies to all Michigan courts, including this Court.

18. MCR 2.002(B) establishes that a party is presumed eligible for a fee waiver if:

- The party's income is at or below 125% of the federal poverty guidelines; or
- The party receives means-tested public assistance.

19. MCR 2.002(C) provides that even if a party does not meet the presumptive eligibility standard, the court may still waive fees upon a showing of inability to pay.

20. Const 1963, Art 1, Sec. 13 guarantees that "[a] suitor in any court of this state has the right to prosecute or defend his suit, either in his own proper person or by an attorney." Conditioning access to this Court's superintending control jurisdiction on fees Movant cannot afford would deny him this constitutional right.

21. *Boddie v. Connecticut*, 401 U.S. 371, 374 (1971): A state may not condition access to the courts on ability to pay when the state holds a monopoly over the resolution of fundamental legal relationships.

22. *M.L.B. v. S.L.J.*, 519 U.S. 102, 116-117 (1996): States may not condition appeals involving parental rights on the ability to pay. Parental rights are among the most fundamental rights recognized under the Constitution.

23. *Troxel v. Granville*, 530 U.S. 57, 65 (2000): The interest of parents in the care, custody, and control of their children is "perhaps the oldest of the fundamental liberty interests recognized by this Court."

VI. FEES AND COSTS REQUESTED TO BE WAIVED

24. Movant respectfully requests that this Court waive all fees and costs associated with proceedings before this Court, including but not limited to:
- a. Filing fee for the Petition for Superintending Control -- \$375.00;
 - b. Motion filing fees;
 - c. Fees for preparation and filing of briefs;
 - d. Transcript costs and record preparation fees;
 - e. Fees for service of process;
 - f. Any other fees or costs that may arise during the pendency of proceedings before this Court.

VII. PRAYER FOR RELIEF

WHEREFORE, Movant Andrew J. Pigors respectfully requests that this Honorable Court:

- A. GRANT this Motion and waive all fees and costs associated with proceedings before this Court pursuant to MCR 2.002;
- B. ACCEPT the accompanying SCAO Form MC 20 as Movant's verified application for fee waiver;
- C. ORDER that Movant shall not be required to pay filing fees, transcript costs, service fees, or any other costs for proceedings before this Court;
- D. GRANT such other and further relief as this Court deems just and equitable.

VERIFICATION

I, Andrew J. Pigors, declare under the penalties of perjury that the statements contained in this Motion and the accompanying SCAO Form MC 20 are true and correct to the best of my knowledge, information, and belief.

Date: \\\, 2026

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Andrew J. Pigors

Petitioner, Pro Se

1977 Whitehall Road, Lot 17

North Muskegon, MI 49445

Telephone: (231) 903-5690

Email: andrewjpigors@gmail.com

CERTIFICATE OF SERVICE

I hereby certify that on \\\, 2026, I served a true copy of this Motion to Waive Fees and Costs and accompanying SCAO Form MC 20 upon all parties identified in the Proof of Service filed herewith.

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Andrew J. Pigors

ATTACHMENT: SCAO Form MC 20 -- Affidavit and Order, Suspension of Fees/Costs

[ANDREW_REQUIRED: Download the MC 20 form from <https://courts.michigan.gov/siteassets/forms-records/scao-approved/mc20.pdf> -- complete all financial sections, sign before a notary if possible, and physically attach to this motion before filing.]